

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #9	CCRB Case #: 201508450	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 10/04/2015 11:00 AM	Location of Incident: Grand Concourse and E 144th Street, Bronx, NY.	Precinct: 40	18 Mo. SOL 4/4/2017	EO SOL 4/4/2017	
Date/Time CV Reported Sun, 10/04/2015 1:20 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 10/04/2015 1:20 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Luis Franco	08088	948986	SOD SRG
2. POM Michael Poletto	03762	925931	SOD SRG

Officer(s)	Allegation	Investigator Recommendation
A.POM Michael Poletto	Abuse: PO Michael Poletto stopped § 87(2)(b)	
B.POM Luis Franco	Abuse: PO Luis Franco stopped § 87(2)(b)	
C.POM Michael Poletto	Discourtesy: PO Michael Poletto acted rudely toward § 87(2)(b)	
D.POM Michael Poletto	Abuse: PO Michael Poletto questioned § 87(2)(b)	
E.POM Michael Poletto	Abuse: PO Michael Poletto searched the car in which § 87(2)(b) was an occupant.	
F.POM Michael Poletto	Abuse: PO Michael Poletto threatened to arrest § 87(2)(b)	
G.POM Michael Poletto	Discourtesy: PO Michael Poletto spoke rudely to § 87(2)(b)	

Case Summary

On October 4, 2015, at approximately 11:00 a.m., § 87(2)(b) was at the BP gas station located at the corner of the Grand Concourse and East 144th Street in the Bronx, cleaning the excess water off his car after returning from a nearby car wash. While cleaning the excess water from his car, two police officers, identified via investigation as PO Michael Poletto and PO Luis Franco of 425 SOD SRG, pulled up to § 87(2)(b) in a marked RMP, exited their vehicle, and approached him (**Allegations A and B**).

PO Poletto, who was the driver, exited the marked police vehicle, approached § 87(2)(b) and allegedly asked, “Whose car is this? Give me all papers. This is a fake car. This is a fake temporary plate.” § 87(2)(b) explained that his car’s license plate was not fake. PO Poletto then asked § 87(2)(b) for his car keys, which § 87(2)(b) was holding in his hand. § 87(2)(b) alleged that PO Poletto snatched the keys out of his hand (**Allegation C**).

PO Poletto then asked § 87(2)(b) for his driver license, registration, and insurance. § 87(2)(b) provided his driver’s license to PO Poletto; however, he did not have any documents for his car. PO Poletto then gave § 87(2)(b)’s driver license to PO Franco, and asked PO Franco to check it. § 87(2)(b) alleged that PO Poletto then asked him if he had any drugs inside the car and if he smoked marijuana (**Allegation D**). § 87(2)(b) alleged that PO Poletto then opened the rear passenger side door, bent down, and leaned inside the vehicle with his body for a few minutes, disappearing from § 87(2)(b)’s view (**Allegation E**). When PO Poletto returned, § 87(2)(b) alleged that he threatened to, “lock § 87(2)(b) up for three days for investigation” (**Allegation F**).

PO Poletto informed § 87(2)(b) that he had to provide the title for the car and a bill of sale. § 87(2)(b) did not provide the documents explaining that he owned a car dealership and was doing business from his home. § 87(2)(b) then asked PO Poletto, “Why you stopping me? I am at the gas station. I am not driving.” § 87(2)(b) alleged that PO Poletto replied, “Shut up and be a man,” “You are not a man” (**Allegation G**). § 87(2)(b) said that PO Poletto returned to the police vehicle, retrieved a cloth, which he used to wipe the rear plate of § 87(2)(b)’s car. § 87(2)(b) again told PO Poletto that the license plate was real. § 87(2)(b) alleged that PO Poletto then threatened to arrest him for the second time (**Subsumed in Allegation F**). § 87(2)(b) alleged that PO Poletto said to him, “You not a man” for the second time when § 87(2)(b) asked if PO Poletto wanted to hurt him (**Subsumed in Allegation G**). § 87(2)(b) alleged that PO Poletto ultimately told him to carry all of the necessary paperwork with him in the car and repeated, “You not a man” for the third time before driving off in his RMP (**Subsumed Allegation G**).

§ 87(2)(b) was not arrested or issued any summons during this incident. There is no video for this incident.

Mediation, Civil and Criminal Histories

- Mediation was presented to § 87(2)(b) accepted mediation during his in-person interview; however, when the mediation unit contacted him, he refused to mediate, and opted for investigation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- A Notice of Claim was not filed regarding this incident (Board Review 3).

Civilian and Officer CCRB Histories

- PO Michael Poletto has been a Member of Service for 15 years, and has no previous CCRB complaints filed against him.

- PO Luis Franco has been a Member of Service for five years, and has no previous CCRB complaints files against him.
- § 87(2)(b) has three previous CCRB complaints (Board Review 2).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described PO Michael Poletto as a white male, who stood 6'0" tall, with a skinny build, approximately 39-years-old, short brownish hair, brown eyes, and possibly wearing glasses. The undersigned emailed counsel@troopers.ny.gov in order to confirm or deny a warrant check for § 87(2)(b). The undersigned received an email back from the Troopers indicating that the police officer with Tax ID #948986 performed a warrant check for § 87(2)(b) (Board Review 10). The undersigned utilized CTS and identified PO Luis Franco by using Tax ID #948986. The undersigned called 425 SOD SGT Command in order to find out with whom PO Franco worked on the day of the incident. PO Franco identified his partner, as PO Poletto, shield #03762. PO Poletto is a § 87(2)(b) - old white male, who stands 6'2" tall, weighs 220 pounds, with brown hair and blue eyes (Board Review 7). PO Poletto acknowledged stopping and interacting with § 87(2)(b) § 87(2)(g).
- § 87(2)(b) described PO Luis Franco as a dark skinned Hispanic or Arab male, who stood 5'8" tall, with stocky build, jet black hair, and brown eyes. PO Franco also acknowledged stopping § 87(2)(b) § 87(2)(g) § 87(2)(b).

Allegation A— Abuse of Authority: PO Michael Poletto stopped § 87(2)(b)

Allegation B—Abuse of Authority: PO Luis Franco stopped § 87(2)(b)

On October 4, 2015, at approximately 11:00 a.m., § 87(2)(b) was at the BP gas station located at the corner of the Grand Concourse and East 144th Street, in the Bronx to clean the excess water off his car after returning from a nearby car wash. While cleaning the excess water from his car, two police officers, identified via investigation as PO Michael Poletto and PO Luis Franco of 425 SOD SRG, pulled up to § 87(2)(b) in a marked RMP and approached him. PO Poletto exited the driver side of the vehicle and approached § 87(2)(b) from the front, while PO Franco approached him from behind. PO Poletto then asked § 87(2)(b) "Whose car is this? Where are the papers? This is a fake temporary plate" (Board Review 1).

PO Poletto stated that while driving on East 149th Street and Grand Concourse in the Bronx, he observed a car with a State of New Jersey paper license plate parked at the gas station, with the rear of the car facing towards the Grand Concourse Street. PO Poletto was driving approximately 10 to 15 feet away from the car, when he saw the temporary paper license plate. PO Poletto then pulled into the gas station. PO Poletto, together with PO Franco, then checked the car's plate number on their computer while inside the RMP. The check revealed that the car was not registered under any car dealership in the State of New Jersey. PO Poletto then decided to stop § 87(2)(b) the car owner, in order to investigate further (Board Review 5).

PO Franco testified that while driving on East 149th Street and Grand Concourse in Bronx, PO Franco and PO Poletto observed a black Mercedes-Benz car parked at the gas station. PO Franco and PO Poletto were approximately 15 to 20 feet away from the car, when the officers noticed that the car had a State of New Jersey temporary license plate. PO Poletto then made a decision to stop the car. PO Franco performed the plate check, and informed PO Poletto that the car was not reported stolen; however, it was not registered to any car dealership in the State of New Jersey (Board Review 6).

Under People v. DeBour, 40, N.Y.2d 210(1976), a police officer has a right to stop a person if the officer has a reasonable suspicion to believe that the subject is committing, has committed, or is about to commit a crime (Board Review 9).

§ 87(2)(g)

§ 87(2)(g)

Allegation C—Discourtesy: PO Michael Poletto acted rudely toward

§ 87(2)(b)

§ 87(2)(b) stated that when he was trying to explain to PO Poletto that his license plate was not fake, PO Poletto then asked § 87(2)(b) for his car keys. § 87(2)(b) was holding the car keys in his hand when PO Poletto asked him for his keys. § 87(2)(b) alleged that PO Poletto then snatched the keys out of his hand (Board Review 1).

PO Poletto testified that he asked § 87(2)(b) to remove his car keys from his hand, and to place them on the top of the car's roof. § 87(2)(b) complied. PO Poletto denied snatching § 87(2)(b)'s car keys out of his hand at any point during the incident. PO Poletto stated that he did not touch § 87(2)(b)'s car keys at any point during the incident (Board Review 5).

PO Franco stated that he did not hear if PO Poletto asked § 87(2)(b) for his car keys, nor did he see if PO Poletto snatched the car keys out of § 87(2)(b)'s hand.

§ 87(2)(g)

Allegation D—Abuse of Authority: PO Michael Poletto questioned

§ 87(2)(b)

Allegation E—Abuse of Authority: PO Michael Poletto searched the car in which

§ 87(2)(b)

§ 87(2)(b) was an occupant.

Allegation F—Abuse of Authority: PO Michael Poletto threatened to arrest

§ 87(2)(b)

§ 87(2)(b) stated that when he provided PO Poletto with his driver license and registration, PO Poletto then gave the documents to PO Franco who then returned to the police vehicle. PO Poletto told § 87(2)(b) not to move while he went to speak to PO Franco. A few minutes later, PO Poletto returned to § 87(2)(b) and said to PO Franco, "Check it again. Check his license again. I can smell drugs here. I can smell weed." § 87(2)(b) alleged that PO Poletto then asked § 87(2)(b) if he smoked marijuana. § 87(2)(b) replied that he did not smoke marijuana. § 87(2)(b) alleged that PO Poletto asked him for the second time if he had any drugs inside the car. § 87(2)(b) replied that he did not have any drugs inside his car. § 87(2)(b) alleged that PO Poletto then opened the front driver side door, and compared the car's VIN number with the number listed on the paperwork. PO Poletto did not go inside the car. PO Poletto walked to the other side of the car, opened the rear passenger side door, bends down, and leaned inside the car for a few minutes with his body, disappearing from § 87(2)(b)'s view. § 87(2)(b) could not see what PO Poletto was doing inside his car. When PO Poletto returned, he then threatened to, "lock § 87(2)(b) up for three days for investigation" (Board Review 1).

PO Poletto testified that when § 87(2)(b) could not produce the documents for the car, PO Poletto then went to the passenger side of the vehicle to get the car's VIN number, generally located at the front left corner of the windshield; however, the number was blocked by a piece of paper. PO Poletto then opened the front driver side door in order to find the VIN number. When PO Poletto opened the door, a strong smell of marijuana emanated from the inside of § 87(2)(b)'s car. PO Poletto then asked § 87(2)(b) if he smoked marijuana. PO Poletto also informed § 87(2)(b) that, "smoking [marijuana] in the vehicle is a possible arrestable offense, and that § 87(2)(b) might not want to do it" (Board Review 5). § 87(2)(b) replied that he gave his car to his nephew who could have been smoking marijuana inside. PO Poletto stated that he did not threaten to arrest § 87(2)(b) for any other reason, other than for smelling marijuana inside the car. PO Poletto further stated that he, "took the benefit of the doubt" that § 87(2)(b) was dealing with numerous vehicles as a car dealer; therefore, PO Poletto warned § 87(2)(b) to carry his car's paperwork with him next time, and let him go without issuing him any summonses.

PO Franco stated that the windows of § 87(2)(b)'s car were rolled down, and PO Franco smelled a strong odor of marijuana emanating from the inside of § 87(2)(b)'s car (Board Review 6). PO Franco did not remember if PO Poletto asked § 87(2)(b) if he smoked marijuana. PO Franco did not remember if PO Poletto asked § 87(2)(b) if he had any drugs on him or inside the car. PO Franco collaborated PO Poletto's testimony stating that PO Poletto opened the front driver side door of § 87(2)(b)'s car in order to locate the VIN number.

According to People v. Valette, 88 A.D.3d 461 (2011), if during a lawful car stop, the police officer detects the odor of marijuana emanating from the vehicle, the police officer then has a probable cause to arrest the subject, and to search the vehicle under the automobile exception (Board Review 11). Under People v. Ahing, 125 A.D.2d 476 (1986), the police officer can perform a limited search of the vehicle in order to locate the VIN number when the actions of the [police officer] are "at all times reasonably related in scope and intensity of the information available" to the police officer upon his interaction with the defendant (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation G—Discourtesy: PO Michael Poletto spoke rudely to § 87(2)(b)

§ 87(2)(b) stated that PO Poletto informed him that he had to have a title for the car and bill of sale. § 87(2)(b) explained that he was a car dealer and was doing his dealership from his home. § 87(2)(b) alleged that PO Poletto asked him to call his family or workers and ask them to email him the paper for the car. § 87(2)(b) then asked PO Poletto, "Why you stopping me? I am at the gas station. I am not driving." PO Poletto then told § 87(2)(b) "Shut up and be a man... You not a man. You have to carry papers" (Board Review 1). § 87(2)(b) replied, "I am a man. It has nothing to do with papers." § 87(2)(b) alleged that at that point PO Franco intervened and told PO Poletto that § 87(2)(b) was "a man." § 87(2)(b) alleged that PO Poletto told § 87(2)(b) "You are not a man" on two more instances during the incident.

PO Poletto stated that at the end of the incident he told § 87(2)(b) “to take responsibility for his actions” (Board Review 5). § 87(2)(b) became a bit agitated and asked Po Poletto, “Do you know who I am?” PO Poletto stated that he did not tell § 87(2)(b) that he, “was not a man” at any point during the incident.

PO Franco testified that he did not hear if Po Poletto told § 87(2)(b) “Shut up and be a man!” or that § 87(2)(b) was not “a man” at any point during the incident (Board Review 6).

§ 87(2)(g)

_____.
_____.

Squad 9:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date